

Court No. - 32

Case :- WRIT - C No. - 37710 of 2019

Petitioner :- Rama Shankar Gupta

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Babban Singh Rathore

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(1) Issue a writ, order or direction in the nature of certiorari for quashing the impugned recovery notice dated 11.10.2019 of Rs.478, 552 from 3 March 2010 to 7 July, 2016 of 77 months and also recovery of Rs.507024 from 8 August 2016 to 2 February 2018 of 19 months with surcharge & regulatory charge at the rate of 7.5% total Rs.886824/- bearing account no. 751723865231 and to restore the electricity supply to the petitioner's connection situate in ward no. 23, village Zamaniya Railway Station Zamaniya, District Ghazipur i.e. Annexure No. (5) to the writ petition.

(2) Issue a writ order or direction in the nature of mandamus directing the respondents not to take any coercive action against the petitioner.

(3) Issue a writ, order or direction in the nature of mandamus directing the respondents concerned to accept the loan amount in easy instalment."

Heard learned counsel for the petitioner, Mr. Mahboob Ahmad, learned counsel appearing on behalf of the Electricity Department and perused the record.

At the very outset, learned counsel appearing on behalf of the Electricity Department has stated that the petitioner has got an alternative remedy under Clause 6.5 of the U.P. Electricity Supply code, 2005 to ventilate his grievance.

The learned counsel for the petitioner has not been able to rebut the contention made by the learned counsel for the Electricity Department.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the concerned authority for redressal of his grievance within 15 days from today, his application may be considered and decided by the said authority in accordance with law within a period of 30 days thereafter.

For a period of 45 day, the impugned recovery notice dated 11.10.2019 issued by the Electricity Department shall remain in abeyance.

It is made clear that this Court has not expressed any opinion with regard to the merit of the case. The authority concerned shall consider the matter on its own merits.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 25.11.2019

Arun